
**DEPARTMENT
POLICY**

This item applies **only** to the Food Assistance Program (FAP).

A non-categorically eligible Senior/Disabled/Veteran (SDV) FAP group must have income below the net income limits.

A non-categorically eligible, non-SDV FAP group must have income below the gross and net income limits.

Use **only** available, countable income to determine eligibility. The Bridges Eligibility Manual (BEM) 500 series defines countable income. [BEM 505, Prospective Budgeting/Income Change Processing](#), defines available income and income change processing. This item describes income budgeting policy.

Always calculate income on a calendar month basis to determine eligibility and benefit amounts. Use income from a month specified in this item for the benefit month being considered.

Budget the entire amount of earned and unearned countable income. Gross countable earned income is reduced by a 20 percent earned income deduction. Every case is allowed the standard deduction; see [Reference Tables Manual \(RFT\) 255](#).

Document income budgeting on either a manually-calculated or an automated FAP worksheet.

SDV GROUP

An SDV FAP group is one which has an SDV member.

Senior

A person at least 60 years old.

Disabled

A person who receives one of the following:

- A federal, state or local public disability retirement pension **and** the disability is considered permanent under the Social Security Act.
- Medicaid program which requires a disability determination by Disability Determination Service (DDS) or Social Security Administration.

Note: Breast and Cervical Cancer Prevention and Treatment Program Medicaid cases are **not** considered disabled.

- Railroad Retirement **and** is eligible for Medicare or meets the Social Security disability criteria.

A person who receives or has been certified and awaiting their initial payment for one of the following:

- Social Security disability or blindness benefits.
- Supplemental Security Income (SSI), based on disability or blindness, **even if** based on presumptive eligibility.

Disabled Veteran

One of the following:

- A veteran of the armed services with a service or non-service connected disability rated or paid as total (100 percent) by the Veterans Administration (VA).
- A veteran's surviving spouse or child who receives or is approved for VA disability benefits, or is entitled to VA death benefits and has a disability considered permanent under the Social Security Act.

DISQUALIFIED OR INELIGIBLE PERSONS

Budgeting income for disqualified persons living with the FAP group differs based on the reason for the disqualification. Family Independence Program (FIP) and State Disability Assistance (SDA) benefits are considered the unearned income of the FIP/SDA head of household (HOH).

Non-Group Members

The income of a non-group member is excluded; see [BEM 212 Food Assistance Program Group Composition](#).

**IPV, Employment
Related Activity,
FAP Trafficking or
Parole or
Probation Violation**

Bridges budgets **all earned and unearned income** of a person disqualified for:

- Intentional Program Violation (IPV).
- Non-cooperation with employment related activities.
- FAP trafficking.
- Parole or probation violation.
- Fleeing Felon.
- Divestment.

Example: John lives with his wife and two children. John is employed and is disqualified for IPV. Bridges budgets all of John's earned income to determine the FAP benefits for his wife and two children.

**SSN Enumeration,
Citizenship/Non-
Citizen Status and
Time Limited**

Bridges budgets a **pro rata** share of earned and unearned income of:

- A person disqualified for refusal to provide a social security number. See BEM 223.
- A person disqualified for refusal to declare citizenship/non-citizen status. See BEM 225.
- A person disqualified for not meeting citizenship/non-citizen status requirements. See BEM 225.
- A person who does not meet time limited requirements. See BEM 620.

Each source of income is prorated individually as follows:

1. The number of eligible FAP group members is added to the number of disqualified persons that live with the group.

2. Next the disqualified/ineligible person's income is divided by the number of persons in step 1.
3. Then the result in step 2 is multiplied by the number of eligible group members.

Do **not** apply these rules to the income of eligible group members, or non-group members; see [BEM 212](#).

Example: Group consists of Mary and her 2 children. Mary's children are U.S. citizens. Mary is an ineligible non-citizen for FAP. Mary's income is divided by 3 (number in Mary's group). Of Mary's income, Bridges budgets the children's portion (2/3) and excludes Mary's portion (1/3).

MEMBER ADDS/ DELETES

A **member add** that increases benefits is effective the month **after** it is reported **or**, if the new member left another group, the month after the member delete. In determining the potential FAP benefit increase, Bridges assumes the FIP/SDA supplement and new grant amount have been authorized.

When a member leaves a group to apply on his own or to join another group, do a **member delete** in the month you learn of the application/member add. If the member delete decreases benefits, **adequate notice** is given for the negative action.

STRIKERS

Bridges compares the striker's income prior to going on strike to the striker's current income. It subtracts the earned income deduction prior to making the above comparison and budgets the higher amount.

Use the above policy to reevaluate changes in source or amount of income.

Average income received on an annual contractual basis over 12 months, **regardless** of the frequency that the wages are paid, such as a school teacher's wages.

SPONSORS OF ALIENS

Apply the BEM 500 Series Income Policy, to determine the sponsor's and the sponsor's spouse's (if living with the sponsor) gross monthly income.

Bridges determines the deemable monthly income as follows:

- All gross monthly earned income minus 20 percent, **plus**
- All gross monthly unearned income, **minus**
- The total monthly countable income limit in RFT 250, FAP Income Limits table, for a FAP group size equal to:
 - The sponsor, plus
 - The sponsor's spouse, plus
 - Any other person the sponsor or sponsor's spouse claims or could claim as a dependent for federal income tax purposes.

Exception: If the non-citizen and spouse are disqualified, the sponsor's income is not deemed.

Exception: The total amount actually contributed by the sponsor if it exceeds the deemed amount determined above is budgeted as unearned income.

Note: See BEM 226 for exemptions to sponsor deeming.

TEMPORARY INELIGIBILITY

If it's determined that ineligibility will last for **only** one month, Bridges temporarily suspends issuance of benefits.

VERIFICATION REQUIREMENTS

Disabled/Disabled Veteran

A person with a disability or a disabled/veteran status **must** be verified.

**VERIFICATION
SOURCES****Disabled/Disabled
Veteran**

Verify disability using at least one of the listed sources.

- Statement from the Social Security Administration indicating the receipt of SSI or RSDI based on disability.
- State On-line Query (SOLQ).
- Statement from the Department of Veterans Affairs indicating the disability is rated or paid as total by VA.

Note: A DHS-27, Release of Information, can be used. Send the completed form to:

Department of Veterans Affairs Regional Office
Federal Building
477 Michigan Avenue
Detroit, Michigan 48226

Specifically request verification that states the “disability is rated or paid as total by VA.”

- Statement from the VA indicating receipt of:
 - VA disability benefits for a veteran's surviving spouse or child.
 - VA death benefits paid to a surviving spouse or child.

Unless disability is obvious, obtain from the physician a statement (or a completed DHS-49 or DHS-54A) for:

- A veteran's disabled surviving spouse or child who is entitled to VA death benefits but **not** VA disability benefits.
- A recipient of a federal, state or local public disability retirement pension;
- A recipient of Railroad Retirement who is **not** eligible for Medicare.

The following is a partial list of disabilities considered permanent by SSA:

- Permanent loss of the use of both hands, both feet, or one hand and one foot.
- Amputation of a leg at the hip.
- Amputation of a leg or foot because of diabetes mellitus or a peripheral vascular disease.
- Total deafness, not correctable by surgery or a hearing aid.
- Statutory (legal) blindness, except if due to cataracts or a detached retina.
- IQ of 59 or less, established after age 16.
- Paraplegia or quadriplegic.
- Multiple sclerosis that is severe, recurring, and includes muscle weakness, paralysis, or interference of vision or speech.
- Muscular dystrophy with a significant effect on the use of the arms or legs.
- Chronic renal disease (documented by persistent, adverse objective findings) resulting in severely reduced kidney function.

LEGAL BASE

7 CFR 271.2
7 CFR 273.1(b)(2)
7 CFR 273.1 (e)
7 CFR 273.9
7 CFR 273.10
7 CFR 273.11
7 CFR 273.8(h)